

24LBCV01100 24LBCV01100

County: los-angeles

Division: Civil Law and Motion

Department: S27

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1. Background Facts

Plaintiff, William Thomas Minor filed this action against Defendants, City of Long Beach and Long Beach Department of Public Works for damages arising out of a motor vehicle incident.

Plaintiff's judicial council form complaint is silent concerning any details of the incident.

2. Motion

to Bifurcate

a.

Parties' Positions

Defendant moves to bifurcate the liability phase of the trial from the damages phase of the trial, if necessary. Defendant contends it will likely obtain a complete defense verdict on the liability issue because Plaintiff jumped onto Defendant's truck. Defendant contends the jury could be swayed by Plaintiff's injuries, which are horrific (degloving), and not relevant to the liability phase of the trial.

Plaintiff opposes the motion. He argues the motion cannot be granted because granting the motion would impede his ability to prove liability, and in any event, Defendant failed to show bifurcation is necessary and justice could not be served by way of adequate jury instructions, motions in limine, etc.

b. Law

Governing Bifurcation

Bifurcation is the procedure whereby the court may order separate trials of issues of parties joined in a single action. The objective of bifurcation is to avoid wasting time and money on the trial of damages issues if the liability issue is resolved against the plaintiff. Also, the procedure is not limited to separate trials of liability and damages; nor is it limited to dividing a case into only two parts. A party seeking bifurcation should request such relief as soon as the need becomes apparent. Delay may be a factor affecting the court's exercise of discretion. Generally, the court has the inherent power to regulate the order of trial and, therefore, can entertain a motion to bifurcate at any time, even during the trial. However, where bifurcation is sought pursuant to CCP §598 (e.g., to obtain bifurcation of liability issue), the order must be made no later than 30 days before trial. (I.e., the motion must be heard and order made more than 30 days before trial.)

Pursuant to CCP §1048(b), "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of the state or of the United States."

c. Analysis

Plaintiff argues bifurcation is not appropriate in this case, relying on *Cohn v. Bugas* (1974) 42 Cal.App.3d 381, 385 to support his position. Notably, the issue in *Cohn* was whether the trial court properly applied the §597 bifurcation statute, which statute concerns trial of affirmative defenses prior to trial of the merits of the plaintiff's lawsuit. That statute is not at issue here. The portion of the case upon which Plaintiff relies is the Court's discussion of another case, *Cook v. Superior Court* (1971) 19 Cal.App.3d 832; *Cook* concerned the unique circumstances that apply to a case for legal malpractice, and the requirement that the plaintiff in such a case prove up not only his case in chief, but also his underlying case. *Cook* is not applicable to this case, which is

a simple personal injury matter.

Despite the foregoing, the Court finds bifurcation is unnecessary and not in the interest of justice. There is always a risk that a jury in a personal injury case could be moved by a plaintiff's severe injuries and find in favor of the plaintiff when it otherwise would not do so. The Court, however, believes this is not a prevailing problem. Juries are adept at parsing the liability issue and the damages issue, and do not typically allow the nature of the injuries to sway their findings concerning liability. Notably, if this were not the case, nearly every personal injury case would need to be heard on a bifurcated basis, and clearly that is not the case. Moreover, there are appropriate mechanisms (i.e., motions in limine) to lessen or avoid any negative impact during a non-bifurcated trial.

Additionally, the Court notes that Defendant's moving papers are entirely devoid of evidence on the liability issue. Defendant contends, via points and authorities, that Plaintiff caused his own damages by jumping onto a moving truck, but Defendant provides no evidence in this regard. Defendant failed to show, therefore, that a liability verdict is highly likely in the case.

Defendant herein failed to show that Plaintiff's injuries are of the extraordinary sort that would require bifurcation to avoid prejudicing the jury. The motion is denied.

Defendant is ordered to give notice.